

**CHAPTER clxiii.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Chiddingfold and District Water East Surrey Water Henley-on-Thames Water and Wimborne Minster Water. [13th December 1912.] A.D. 1912.

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

And whereas the new limits of supply as defined by the East Surrey Water Order 1912 hereby confirmed include a portion of the area within which the Chelsham and Woldingham Water Works Company Limited were by the Chelsham and Woldingham Water Order 1910 authorised to supply water but the said company have not in fact supplied water within the portion aforesaid and it has been agreed between the said company and the Undertakers for the purposes of the said first-mentioned Order that the said Undertakers shall be authorised by the said Order to supply water therein and that so much of the Chelsham and Woldingham Water Order 1910 as authorises the said company to supply water therein shall be repealed:

And whereas the new limits of supply as defined by the Henley-on-Thames Water Order 1912 hereby confirmed include a portion of the area within which the South Oxfordshire Water and Gas Company were by the South Oxfordshire Water and

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A.D. 1912. Gas Act 1905 authorised to supply water but the said company has not in fact supplied water within the portion aforesaid and it has been agreed between the said company and the Undertakers for the purposes of the said Order that the said Undertakers shall be authorised by the said Order to supply water therein and that so much of the South Oxfordshire Water and Gas Act 1905 as authorises the said company to supply water therein shall be repealed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the Water Orders Confirmation Act 1912.

Confirmation of Orders in schedule. 2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect.

Amendment of 10 Edw. 7. and 1 Geo. 5. c. xciv. (Chelsham and Woldingham Water Order 1910) and of 5 Edw. 7. c. xxxii. (South Oxfordshire Water and Gas Act 1905). 3. So much of the Chelsham and Woldingham Water Order 1910 as authorises the Chelsham and Woldingham Water Works Company Limited to supply water within so much of the parishes of Chelsham and Woldingham as is included within the new limits of supply as defined by the East Surrey Water Order 1912 hereby confirmed and so much of the South Oxfordshire Water and Gas Act 1905 as authorises the South Oxfordshire Water and Gas Company to supply water within so much of the parishes of Rotherfield Greys Rotherfield Peppard Harpsden and Shiplake as is included within the new limits of supply as defined by the Henley-on-Thames Water Order 1912 hereby confirmed are hereby repealed and as from the passing of this Act all the powers of the Chelsham and Woldingham Water Works Company Limited and of the South Oxfordshire Water and Gas Company respectively with reference to the supply of water within such respective portions of parishes as aforesaid shall absolutely cease and determine and the East Surrey Water Order 1912 and the Henley-on-Thames Water Order 1912 shall have as full validity and effect as though such respective portions of parishes had never been included within the limits within which the said companies respectively were by the said Order and Act authorised to supply water.

SCHEDULE.

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LIST OF ORDERS.

CHIDDINGFOLD AND DISTRICT WATER.—Order authorising the Chiddingfold and District Water Company Limited to maintain and continue and to construct waterworks and to supply water in the parishes of Dunsfold and Chiddingfold and part of the parish of Witley in the county of Surrey.

EAST SURREY WATER.—Order extending the limits of supply of the East Surrey Water Company authorising the Company to raise additional capital and for other purposes.

HENLEY-ON-THAMES WATER.—Order extending the limits of supply of the Henley-on-Thames Water Company Limited authorising the Company to construct new waterworks and to raise additional capital and for other purposes.

WIMBORNE MINSTER WATER.—Order empowering the Wimborne Minster Waterworks Company Limited to raise further capital to extend the area of supply and for other purposes.

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CHIDDINGFOLD AND DISTRICT WATER.

*Chiddingfold
and District.*

*Order authorising the Chiddingfold and District Water
Company Limited to maintain and continue and to construct
waterworks and to supply water in the parishes of
Dunsfold and Chiddingfold and part of the parish of Witley
in the county of Surrey.*

Preliminary.

Short title.

1. This Order may be cited as the Chiddingfold and District Water Order 1912.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 are except where the same are expressly varied by this Order hereby incorporated with and form part of this Order. And the said provisions of the last-mentioned Acts shall apply as well to the pipes and works of the Undertakers laid down or constructed before the commencement of this Order as to any pipes or works which may be laid down or constructed under the authority of this Order.

Interpreta-
tion.

4. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction.

In this Order the expressions "deposited plans" and "deposited sections" shall mean respectively the plans and sections as varied by the amended plans and sections deposited for the purposes of this Order.

Limits of
Order.

5. The limits within which the provisions of this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the whole of the parishes of Dunsfold and Chiddingfold and so much of the parish of Witley as is coloured blue on the map signed in duplicate by an assistant secretary of the Board of

Trade one copy whereof has been deposited in the Parliament Office A.D. 1912:
House of Lords and the other at the offices of the Undertakers.

6. If at any time after the expiration of three years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of pure and wholesome water in accordance with the provisions of this Order in any part of the district of any local authority included within the limits of supply the local authority of such district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district to which the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water as if in either case there were no Undertakers authorised by this Order to supply water therein.

Chiddingfold and District.
Where Undertakers not furnishing sufficient supply local authority or company may supply.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

Undertakers.

7. The Chiddingfold and District Water Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Capital.

8. The share capital of the Undertakers for the purposes of the water undertaking authorised by this Order shall not exceed fifteen thousand pounds consisting of the original share capital already raised by the Undertakers of five thousand and fifty-four pounds (in this Order referred to as "the original capital") and of additional share capital not exceeding nine thousand nine hundred and forty-six pounds (in this Order referred to as "the additional capital") unless the Undertakers are hereafter authorised to raise for the purposes of their water undertaking further additional capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Capital.

9. All money raised under this Order shall be applied only to purposes to which capital is properly applicable.

Application of money.

10. The Undertakers shall not in any year declare or make out of their profits any larger dividends than seven pounds upon every one hundred pounds actually paid up of the original capital and seven pounds upon every one hundred pounds actually paid up of so much of the

Limits of dividend on capital.

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A.D. 1912. *Chiddingfold and District.* additional capital as may be issued as ordinary capital or five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said yearly rates.

Dividends on different classes of ordinary shares to be paid proportionately. 11. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenue of the Undertakers applicable to dividend is insufficient to pay the full amount of the prescribed rates on each class of ordinary shares in the original capital and additional capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Limit of borrowing powers. 12. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the water undertaking authorised by this Order shall not at any time exceed in the whole one third of the amount of the paid-up capital of the Undertakers at the time actually raised by the issue of shares and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Lands.

Power to use and acquire lands and easements. 13. The Undertakers may by agreement purchase take on lease acquire and use such of the lands shown on the deposited plans as they may require for the purposes of the water undertaking authorised by this Order and they may by agreement purchase take on lease acquire and use any other lands and any easements rights or privileges (not being easements rights or privileges to take water in which persons other than the grantors have an interest) in over or affecting any lands which they may require for such purposes Provided always that they shall not create or permit a nuisance on any lands held by them and that they shall not at any time purchase for such purposes more than ten acres of land.

Persons under disability may grant easements &c. 14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to erect &c. cottages for 15. The Undertakers may on any land for the time being belonging to, or leased by them erect fit up maintain and let houses cottages and

buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

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officers and
servants.

Works.

16. The Undertakers may in upon or under the lands or in or under the streets roads or highways in upon or under which the same are respectively situate but as regards such lands only if and so long as they are possessed of the same or of any necessary rights or easements entitling them so to do maintain continue alter enlarge renew and improve their existing waterworks hereinafter described The existing waterworks hereinbefore referred to are situate in the county of Surrey and are—

Power to
maintain and
construct
waterworks
and to supply
water.

Work No. 1 A well and pumping station as now existing situate in the parish of Witley in the north side of the enclosure numbered 527 in the said parish on the 25-inch Ordnance map of Surrey (second edition 1897) sheet XXXVIII-9 :

Work No. 2 A well as now existing situate in the parish of Witley in the said enclosure about one and a half chains in a northerly direction from the well and pumping station (Work No. 1) hereinbefore described :

Work No. 3 A tank or reservoir as now existing with the pipe leading thereto situate in the parish of Witley in the north-east corner of the field or enclosure numbered 530 in the said parish on the before-mentioned Ordnance map sheet XXXVIII-9 :

Work No. 4 A line or lines of pipes as now existing situate wholly in the parish of Witley commencing at the well and pumping station (Work No. 1) hereinbefore described and terminating in the north side of the tank or reservoir (Work No. 3) hereinbefore described :

Work No. 5 A well and pumping station as now existing situate in the parish of Dunsfold in the field or enclosure numbered 201 in the said parish on the before-mentioned Ordnance map sheet XLVI-1 :

Work No. 6 A well as now existing situate in the parish of Dunsfold in the said field or enclosure numbered 201 in the said parish on the before-mentioned Ordnance map sheet XLVI-1 about two chains measured in a south-westerly direction from the well and pumping station (Work No. 5) hereinbefore described :

Work No. 7 A tank or reservoir as now existing situate in the parish of Dunsfold in the south-east portion of the field or enclosure numbered 231 in the said parish on the before-mentioned

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Ordnance map sheet XLVI-1 at a point one and a half chains or thereabouts measured in a north-westerly direction from the south-east corner of that enclosure :

Work No. 8 A line or lines of pipes as now existing situate in the parishes of Chiddingfold and Dunsfold commencing in the parish of Chiddingfold at the termination of the line of pipes (Work No. 15) hereinafter described and terminating in the parish of Dunsfold at the point of intersection of the road from Burningfold Farm to Durfold and the road from Loxley Bridge to the said farm :

Work No. 9 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing on the south side of Loxley Bridge at a point in the road leading from Dunsfold to Durfold twenty yards or thereabouts measured in a south-westerly direction from the centre of the said bridge and terminating in the west side of the reservoir (Work No. 7) hereinbefore described :

Work No. 10 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing at the well (Work No. 5) hereinbefore described and terminating in the north side of the reservoir (Work No. 7) hereinbefore described :

Work No. 11 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing by a junction with the line of pipes (Work No. 9) hereinbefore described at a point in the road leading from Rickhurst to Furnace Bridge ten yards or thereabouts measured in a westerly direction from the north-western boundary of the field or enclosure numbered 252 in the said parish on the before-mentioned Ordnance map sheet XLVI-1 and terminating in the road leading from Dunsfold to Loxwood at a point in that road twenty-five yards or thereabouts measured in a southerly direction from the southern corner of the field or enclosure numbered 532 in the said parish on the said Ordnance map sheet XLVI-5 :

Work No. 12 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing by a junction with the line of pipes (Work No. 11) hereinbefore described at a point in the said road leading from Dunsfold to Loxwood two and a half chains or thereabouts measured in a southerly direction from the north-east corner of the field or enclosure numbered 504 in the said parish on the before-mentioned Ordnance map sheet XLVI-5 and terminating in the road leading from Rickhurst to Furnace Bridge at a point half a chain or thereabouts measured in an easterly direction from the

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north-east corner of the field or enclosure numbered 444 in the said parish on the said Ordnance map sheet XLV-8: A.D. 1912.

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Work No. 13 A line or lines of pipes as now existing situate wholly in the parish of Dunsfold commencing by a junction with the line of pipes (Work No. 9) hereinbefore described at a point in the public footpath leading from Dunsfold to Loxley Bridge two and a half chains or thereabouts measured in a south-easterly direction from the north-east corner of the field or enclosure numbered 339 on the before-mentioned Ordnance map sheet XLV-4 and terminating in the road leading from Gratton Corner to St. Mary's Church within the said parish at a point one and a half chains or thereabouts measured in a northerly direction from the north-west corner of the field or enclosure numbered 308 in the said parish on the said Ordnance map sheet XLV-4:

And the Undertakers may maintain continue alter enlarge renew and improve any mains or pipes already laid down in connection with the before-mentioned works or any of them.

Subject to the provisions of this Order the Undertakers may also in upon or under the lands or in or under the streets roads or highways in upon or under which the same are shown on the deposited plans but as regards such lands only while they are possessed of the same or of any necessary rights or easements entitling them so to do make and maintain in the lines and according to the levels shown on the deposited plans and deposited sections the new works hereinafter described.

The new works authorised by this Order are situate in the parishes of Witley and Chiddingfold in the county of Surrey and are as follows:—

Work No. 14 A line or lines of pipes wholly situate in the parish of Witley commencing at the well (Work No. 1) hereinbefore described and terminating in the south side of the reservoir (Work No. 16) hereinafter described:

Work No. 15 A line or lines of pipes situate in the parishes of Witley and Chiddingfold commencing in the parish of Witley at the reservoir (Work No. 16) hereinafter described and terminating at High Street Green in the parish of Chiddingfold by a junction with the line of pipes (Work No. 8) hereinbefore described:

Work No. 16 A tank or reservoir situate in the parish of Witley in the south-west portion of the field numbered 705 in the said parish on the 25-inch Ordnance map of Surrey (second edition

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1897) sheet XXXVIII-13 at a point two and a half chains or thereabouts measured in a north-easterly direction from the south-west corner of that field.

In addition to the foregoing works the Undertakers may upon any lands upon which they are entitled under this Order to construct or maintain such works but as regards such lands only if and so long as they are possessed of the same or of the necessary rights or easements entitling them so to do make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices bye-washes shafts wells bores water towers overflows waste-water channels gauges filter-beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the before-mentioned works or any of them and (subject to the consent of any road authority and person affected) telegraphs and telephones necessary or convenient in connection with the before-mentioned works or any of them Provided that no telegraphs or telephones constructed and maintained under the provisions of this Order shall be used for the transmission of telegrams within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Subject to the provisions of this Order the Undertakers may collect impound take use divert and appropriate for the purposes of their water undertaking all such springs streams or waters as may be intercepted by the works by this Order authorised to be constructed or maintained and may supply and sell water for domestic and other purposes within the limits of supply.

Limits of
deviation.

17. In constructing the works authorised by this Order the Undertakers may deviate laterally to any extent within the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoir three feet upwards and five feet downwards and in the case of the other works three feet upwards and ten feet downwards Provided always that the Undertakers may in constructing such works or any of them in or upon the lands shown on the deposited plans which for the time being belong to or are leased to or have been acquired by them under the provisions of this Order deviate beyond such limits laterally and vertically to such extent as they may think necessary Provided also that the Undertakers shall not raise any aqueduct or line of pipes above the surface of the ground unless so shown on the deposited sections and then only to the extent so shown.

Completion
of works.

18. The new works authorised by this Order shall be commenced constructed and completed within the time and subject to the conditions

prescribed by section 11 of the Gas and Water Works Facilities Act 1870
Provided always that subject to the restrictions and provisions of this
Order the Undertakers may alter enlarge renew deepen improve and
extend their engines machinery tanks wells filters pipes mains connections
and other works in such way and manner as may be requisite or advisable
for supplying water within the limits of supply.

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19. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament.

Limiting
powers of
Undertakers
to abstract
water.

20. Subject to the provisions of the Waterworks Clauses Act 1847 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Undertakers and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop up break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Undertakers shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Detection of waste.

21. The Undertakers may but only with the consent of the owner of the soil of such street or road upon the application of the owner or occupier of any premises within the limits of supply of the Undertakers abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with water and may lay and take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Waterworks Clauses Acts 1847 and 1863 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
pipes in
streets not
dedicated to
public use.

22. For the protection of the county council of the administrative county of Surrey (in this section called "the county council") the following provisions shall notwithstanding and in addition to any other provisions in this Order contained unless otherwise agreed in writing between the county council and the Undertakers obtain and have effect (that is to say):—

For pro-
tection of
Surrey
County
Council.

(1) It shall not be lawful for the Undertakers to supply water derived from any source in the county of Surrey in bulk or otherwise beyond or for use beyond the limits of that county :

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- (2) The Undertakers shall unless prevented by unavoidable cause or accident or during necessary repairs whenever required by the county council supply to any public authority within the limits of supply water by measure for the purposes set forth in section 37 of the Waterworks Clauses Act 1847 and also shall subject as aforesaid supply water by measure to court-houses police-stations and to school-houses of elementary schools (as defined by the Elementary Education Act 1870) and to schools of art technical institutions and other higher educational institutions provided or aided by the county council at a fixed rate not exceeding one shilling and ninepence per thousand gallons (exclusive of meter rent) Provided always that the Undertakers shall not be bound to supply water for the purposes in this subsection mentioned unless such supply as aforesaid is required in or adjoining any street in which a main or pipe of the Undertakers is or shall be laid and if and so long as such supply would in any way interfere with or unduly diminish the supply for domestic purposes within the limits of supply:
- (3) All aqueducts conduits or lines of pipes to be laid in or along any main road or in upon or across any county or main road bridge and the approaches thereto shall be laid in such position in or at the side thereof as the county council in writing under the hand of their surveyor may reasonably direct:
- (4) The provisions of section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall so far as relates to all main roads and county or main road bridges opened and broken up or interfered with by the Undertakers in the exercise of the powers of this Order (except for laying connecting or repairing consumers' service pipes as to which three days' notice shall be given and except in cases of accidental leakage or burst or other emergency in which cases no notice shall be required) be read and have effect as if seven clear days were substituted therein for three clear days:
- (5) The plan required by the thirty-first section of the last-mentioned Act shall be accompanied by a section of the proposed works and shall be delivered to the county council or their surveyor by the Undertakers not less than in the case of a bridge one month and in all other cases fourteen days before they commence to open or break up any main road or interfere with any county or main road bridge for the purpose of executing the works:

- (6) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the surveyor of the county council which consent may be given upon such conditions (not being a money payment) as the county council or such surveyor may reasonably determine : A.D. 1912:
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- (7) The Undertakers shall not permit any trench made by them in any main road or county or main road bridge to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time :
- (8) Where any pipe conduit or other work of the Undertakers is to be laid or constructed beneath the surface of any such road or bridge as aforesaid the same shall if possible be laid or constructed at such a depth that not less than three feet shall intervene between the surface of such road or bridge and the upper surface of any such pipe conduit or work Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as hereinafter in this section provided :
- (9) If the county council alter or divert any such road or rebuild or alter any such bridge the Undertakers shall in case of the alteration or diversion of any such road alter or remove the pipe conduit or other work of the Undertakers laid in under through or by the side of any such road into the road as so altered or diverted and in the case of any rebuilding or alteration of any such bridge the Undertakers shall alter and remove any pipe conduit or other work of the Undertakers so far as may be reasonably necessary for the rebuilding or alteration of the said bridge or for securing the safety of the said pipe conduit or work and the continuance of the supply given through or by the same All such works shall be executed by the Undertakers under the superintendence (if the same be given) and in accordance with the reasonable directions of the surveyor of the county council Provided that before such alteration diversion or rebuilding of any such road or bridge shall be commenced the county council shall (except in cases of emergency) give fourteen days' notice in writing to the Undertakers of their intention to carry out such works and shall at their own expense afford all reasonable facilities for temporarily carrying the said pipes conduits or other works along such road or across or under the stream

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Provided also that all expense reasonably incurred by the Undertakers under the provisions of this subsection in altering the position of such pipes conduits or other works shall be paid to them by the county council except so far as such expense is incurred consequent upon the alteration or rebuilding of any county or main road bridge :

(10) If the Undertakers in the execution of any works in or affecting any such road or bridge as aforesaid shall cause any damage injury or disturbance to such road or bridge and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 it shall be lawful for the county council after reasonable notice to the Undertakers of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :

(11) If any difference at any time arises between the county council and the Undertakers touching this section or anything to be done or not to be done thereunder such difference shall be referred to and settled by an engineer to be appointed in default of agreement by the Board of Trade on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of Lon-
don and
South West-
ern Railway
Company.

23. For the protection of the London and South Western Railway Company (in this section called "the South Western Company") the following provisions shall unless otherwise agreed between the South Western Company and the Undertakers apply and have effect:—

(1) In laying down altering improving enlarging extending maintaining repairing or renewing any mains pipes or other works in the exercise of the powers contained in this Order upon across under over or in any way affecting the railways lands and property now belonging to the South Western Company or any lands or property now used or occupied by them or the bridges approaches viaducts stations or other works or any level crossings over the railways of the South Western Company (hereinafter referred to as "the railway works") the same shall except in cases of emergency be done under the superintendence (if the same be given) and to the reasonable satisfaction of the chief engineer of the South

Western Company and only according to plans submitted to and previously reasonably approved by him in writing and in such manner as shall be so approved by him or in case of difference as may be determined by arbitration in manner hereinafter provided. Provided that if the said engineer shall not signify his approval or disapproval of any plans or proposals so submitted to him within twenty-one days after the same are delivered to him he shall be deemed to have approved thereof. Provided also that where in the opinion of the said engineer there is not a reasonably sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the South Western Company may require such mains or pipes to be carried below outside or (if reasonably required by them) independently of the structure of any such bridge and shall afford all reasonable facilities for the purpose:

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- (2) All such works shall be done by and at the expense of the Undertakers who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over any bridge or over any level crossing of the railways of the South Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Undertakers. Provided always that if the South Western Company within twenty-one days after the receipt by them of notice of the intention of the Undertakers to lay any mains or pipes under or across any level crossing on their railways elect by notice in writing to the Undertakers so to do they may themselves lay any such mains and pipes under or across such level crossing under the superintendence and to the reasonable satisfaction of the Undertakers' engineer and the amount reasonably expended by the South Western Company in so doing shall be repaid to them by the Undertakers but if for fourteen days after any such notice is given by the South Western Company to the Undertakers the South Western Company neglect to proceed with due diligence to lay such mains or pipes the Undertakers may forthwith lay the same:
- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the railway works and so as not to cause any interruption to the passage or conduct of traffic on the railways of the South Western Company and so as to obstruct

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and District.*

as little as possible the access to any passenger station of the South Western Company:

- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works or operations of the Undertakers or the bursting leakage or failure of any of the mains pipes or works of the Undertakers in under over or near to the railway works the Undertakers shall make compensation to the South Western Company in respect thereof and the amount of such compensation unless agreed upon shall be determined by arbitration in the manner hereinafter provided:
- (5) The Undertakers shall give twenty-one days' notice in writing to the South Western Company before commencing any works affecting the railway works except in cases of emergency and then so soon as is possible after the beginning of the work or the necessity for the same shall have arisen:
- (6) All mains or pipes and other works of the Undertakers upon across over under or in any way affecting the railway works shall be at all times maintained in good repair by the Undertakers and in default of their being so maintained the South Western Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Undertakers require the Undertakers to forthwith put the same into good repair and if the Undertakers for fourteen days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity therefor the South Western Company may without any further notice to the Undertakers repair the same and all costs and expenses reasonably incurred by them in or about such repair shall be repaid to them by the Undertakers Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such main pipe or other work as aforesaid being in want of repair the South Western Company may without giving such notice as aforesaid execute such repairs as may be immediately necessary Provided also that the South Western Company shall as soon as possible give notice to the Undertakers of their intention to execute the same and any reasonable costs and expenses to which the South Western Company may be put by reason of any such repairs shall be repaid to them by the Undertakers:
- (7) The Undertakers shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence

by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the railway works with reference to and during such construction and repair so far as such costs may in case of difference be determined by arbitration as hereinafter provided to have been necessary but such superintendence by the South Western Company shall not relieve the Undertakers from liability for any accident which may be occasioned by or through the operations of the Undertakers or by their contractors agents or workmen :

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*Chiddingfold
and District.*

- (8) If at any time it is found necessary in order to enable the South Western Company under their existing powers to carry out any alterations renewals repairs or extensions of their railway or works to alter the position of the said mains pipes or works the Undertakers shall on receiving notice in writing from the South Western Company so to do at their own cost and to the reasonable satisfaction of the engineer of the South Western Company alter the position of the said mains pipes or works or temporarily support the same so far as may be necessary to enable the South Western Company to carry out such alterations renewals repairs or extensions of their railway or works and the provisions of this section shall apply to the said mains pipes or works in their altered position :

- (9) Any dispute or difference which may arise between the South Western Company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

24. If any difference arise between the Undertakers and any road authority railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order for the purpose of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits or pipes or as to the facilities to be afforded for the same or as to any other matter herein referred to the same shall unless otherwise provided by this Order be settled by an engineer to be appointed by the Board of Trade at the request of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

Differences
with road
authority or
railway or
other com-
pany.

A.D. 1912.

Supply.

*Chiddingfold
and District.*Limits of
pressure.

25. The water supplied by the Undertakers shall be laid on constantly under pressure but need not at any time be delivered at a greater height than can be reached by gravitation from the service reservoir or tank from which the supply is taken and it shall be in the discretion of the Undertakers in every case to determine the particular service reservoir or tank from which the supply is to be taken.

Rates for
domestic
supply.

26. The Undertakers shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Order to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate not exceeding ten pounds per centum per annum of the rateable value of the premises supplied and so in proportion for any shorter period than a year:

Provided that the Undertakers shall not be compellable to furnish any such supply as aforesaid for any less sum than eight shillings and eight pence in any one year.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter in which the rate accrues or if there is no such rate in force by the last rate made for the relief of the poor:

Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be determined by a court of summary jurisdiction.

Byelaws for
preventing
waste &c. of
water.

27.—(A) The Undertakers may make byelaws for the purpose of preventing waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(B) Such byelaws shall apply only in the case of premises to which the Undertakers are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(C) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 185 of the Public Health Act 1875 and

all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Undertakers were a local authority within the meaning of those sections and the secretary of the Undertakers were the clerk of the local authority.

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and District.*

(D) A copy of all such byelaws in force for the time being shall be kept at the office of the Undertakers. All persons may at all reasonable times inspect such copy without payment and the Undertakers shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy.

(E) In case of failure of any person to obey such byelaws as are for the time being in force the Undertakers may if they think fit after forty-eight hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Undertakers as the water rates in respect of the premises are recoverable.

28. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates pay-
able by
owners of
small houses.

29. The Undertakers may supply water for other than domestic purposes on such terms and conditions as the Undertakers think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Supply by
measure.

30. The Undertakers shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Supply to
houses partly
used for
trade &c.

31. The price to be charged for a supply of water by measure shall not exceed two shillings and threepence per thousand gallons.

Price of sup-
ply by
measure.

[Ch. clxiii.] *Water Orders Confirmation* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. 32. The Undertakers may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or persons supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

Chiddingfold and District.
Contracts for supplying water in bulk.

Power to sell or let meters. 33. The Undertakers may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Undertakers to let for hire any water fittings to any person supplied by them with water.

Power to supply fittings. 34.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Undertakers not bound to supply several houses by one pipe. 35. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of discontinuance. 36. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers.

37. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

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Chiddingfold and District.

Notice to Undertakers of connecting or disconnecting meters.

38. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Undertakers Provided always that if the Undertakers and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Register of meter to be *primâ facie* evidence.

39. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe the several owners or occupiers of such houses or parts of houses shall be liable to the payment of the same rates for the supply of water as they would have been liable to if each of such several houses or parts of such houses had been separately supplied with water from the works of the Undertakers by a distinct pipe Provided that the Undertakers shall not be compelled to supply water to the occupier of any part of a dwelling-house unless the water rate is paid for the whole of such dwelling-house.

When several houses supplied by one pipe each to pay.

40. Where there are several tenements in a row no tenant or occupier of any one of the tenements nor any persons on his behalf shall take or use the water laid on by the Undertakers to any other of such tenements unless the tenant or occupier so taking or using the water be in respect of the tenement so occupied by him rated under this Order for a supply of water.

Supply of water to tenements in a row.

41. Any tenant or occupier of one or part of one of several houses or tenements supplied by a common pipe who takes or uses the water laid on by the Undertakers to any other such house or tenement or allows the same to be taken or used contrary to the provisions of this Order shall for every such offence be liable to a penalty not exceeding five pounds.

Misuser where supply to several houses is by a pipe common to all.

42. Section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent

Amendment of 10 & 11 Vict. c. 17. s. 44.

A.D. 1912. " in writing of the owner or reputed owner of any such house or of
Chiddingfold " the agent of such owner" were omitted therefrom Provided always
and District. that any rent paid by an occupier in pursuance of the provisions of
the said section may be deducted by such occupier from any rent
from time to time due by him to such owner.

For protection of Godalming Corporation. 43. For the protection of the mayor, aldermen and burgesses of
the borough of Godalming (in this section referred to as "the
corporation") the following provision shall unless otherwise agreed in
writing between the corporation and the Undertakers have effect
(that is to say):—

The Undertakers shall not directly or indirectly supply water in
bulk or otherwise within or for use within the area in which
the corporation are by any Act of Parliament or Provisional
Order now authorised to supply water.

For protection of W. G. Jackson
A. Ransom
A. H. Jackson and W. J.
H. Whittall. 44. The Undertakers shall within one year of the commencement
of this Order lay down the necessary pipes and furnish in accordance
with the provisions of this Order a supply of water for domestic use
to such of the premises known as Prestwick Little Prestwick Farm Little
Prestwick House and High Prestwick adjoining Prestwick Lane in the
parish of Chiddingfold the owners or occupiers whereof shall execute
an agreement binding themselves to pay to the Undertakers for three
successive years at least for the water supplied at the rates specified in
this Order or in the event of such rates in any such year being less in
the aggregate than thirty pounds then the sum of thirty pounds for such
year but the Undertakers shall not be required to give a constant supply
to the premises to which they are bound to furnish a supply under this
section but shall keep the water laid on so as to give a supply to the
premises the owners or occupiers of which shall have entered into the
said agreement for at least two hours every day Provided always that
if a requisition shall be made on the Undertakers to give a supply under
the provisions of section 35 of the Waterworks Clauses Act 1847 as varied
by this Order the Undertakers may calculate as against the party or
parties making such requisition the expenses incurred by the Under-
takers in providing and laying down pipes to give such constant supply
as if any pipes or works laid down for the purpose of furnishing a
supply under this section had been provided and laid down in pursuance
of such requisition.

For protection of Edward Lee Rowcliffe. 45. For the protection of Edward Lee Rowcliffe or other the owner
for the time being of the Hall Place Estate (in this section called "the
owner") the following provisions shall except so far as otherwise agreed
between the Undertakers and the owner apply and have effect (that is
to say):—

(1) Subject to the provisions of the sections of this Order the
marginal notes whereof respectively are "Price of supply by

measure" and "Contracts for supplying water in bulk" A.D. 1912.
the Undertakers shall whenever required by the owner after
the expiration of one year from the commencement of this
Order deliver into tanks of a total capacity of not less than
2,500 gallons provided by the owner a sufficient quantity of
water for the supply of such part of the Hall Place Estate
as is situate in the Parishes of Hascombe and Alfold : *Chiddingfold
and District.*

- (2) Notwithstanding the provisions of the section of this Order the marginal note whereof is "Limits of pressure" any supply afforded by the Undertakers to any part of the Hall Place Estate within the Parish of Dunsfold shall be afforded under such pressure that the water so supplied shall reach the top storey of every house in that portion of the said estate to which such supply is afforded :
- (3) The Undertakers shall not be required to give a constant supply under subsections (1) and (2) of this section but shall keep the water laid on for at least two hours every day Provided always that in the case of a supply under subsection (1) of this section it shall not be obligatory on the Undertakers to keep the water laid on as aforesaid on any day after the Undertakers shall have once on such day filled the tanks referred to in that subsection :
- (4) The Undertakers shall lay down and maintain all necessary pipes to give a supply under subsection (1) of this section within the limits of supply to a point in Benbow Lane 2,000 feet westward of the Guildford to Horsham main road and the owner shall lay down and maintain any other pipes and apparatus necessary for that purpose :
- (5) The price to be charged for any supply under subsection (1) of this section shall not exceed two shillings and threepence per 1,000 gallons :
- (6) If any difference arises between the Undertakers and the owner touching this section or anything to be done or not to be done thereunder such difference shall be referred to and settled by an engineer to be appointed in default of agreement by the Board of Trade on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

Penalties.

46. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument *Injuring
meters &c.*

A.D. 1912. *Chiddingfold and District.* for measuring water or any fittings belonging to the Undertakers or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Undertakers shall (without prejudice to any other right or remedy for the protection of the Undertakers) be liable to a fine not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter or fittings belonging to the Undertakers or has fraudulently altered the index to any meter or other instrument for measuring water or prevented any meter from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Undertakers the Undertakers may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Undertakers by the person so offending and may be recovered by them as water rates are recoverable and the existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Undertakers when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Miscellaneous.

Temporary discharge of water into streams.

47.—(1) For the purpose of constructing enlarging extending repairing cleansing emptying or examining any of the works by this Order authorised to be constructed or maintained the Undertakers may cause the water in such works to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Undertakers shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

As to communication pipes.

48. For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open

the ground as is conferred upon him by and subject to the conditions and provisions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

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*Chiddingfold
and District.*

49. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner:

Power to
Undertakers
to repair com-
munication
pipes.

Provided that except in case of emergency the Undertakers shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours previous notice of their intention so to enter.

50. If a person requiring a supply of water from the Undertakers has previously quitted premises at which water was supplied to him by the Undertakers without paying to them all water rates and other moneys due from him to the Undertakers they may refuse to furnish to him a supply of water until he pays the same.

Power to
refuse sup-
ply to per-
sons in debt
for other
premises.

51. Any justice who issues a warrant of distress in pursuance of the provisions of this Order may order that the costs of the proceedings for the recovery of the money to be levied shall be paid by the person liable to pay such money and such costs shall be ascertained by such justice and shall be included in the warrant of distress for the recovery of such money.

Warrant of
distress to
include costs.

52. Any summons or warrant issued for any of the purposes of this Order may contain in the body thereof or in the schedule thereto several sums due from the same individual.

Several sums
in one sum-
mons.

53. No justice or judge of any county court or quarter sessions shall be disqualified from acting in the execution of this Order by reason of his being liable to the payment of any water rate or other charge under this Order.

Liability to
water rate not
to disqualify
justice from
acting.

54. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

A.D. 1912.

East Surrey.

EAST SURREY WATER.

Order extending the limits of supply of the East Surrey Water Company authorising the Company to raise additional capital and for other purposes.

Preliminary.

Short title.

1. This Order may be cited as the East Surrey Water Order 1912.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed, which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts.

3. So far as the same relate to the powers conferred by this Order the provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 the Companies Clauses Act 1869 the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and the Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the Waterworks Clauses Act 1847 "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner") are (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of the existing Acts and Orders as hereinafter defined and of this Order) incorporated with this Order.

For the purposes of such incorporation the term "special Act" in the said Acts shall mean this Order and the term "the Company" shall mean the Undertakers.

A.D. 1912.

East Surrey.

4. In this Order—

Interpreta-
tion.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Gas and Water Works Facilities Act 1870 have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expression "the existing Acts and Orders" means and includes the Caterham Spring Water Company's Act 1862 (hereinafter referred to as "the Act of 1862") the Caterham Water Order 1873 the Caterham Spring Water Company's Act 1881 (hereinafter referred to as "the Act of 1881") the East Surrey Water Act 1885 (hereinafter referred to as "the Act of 1885") the East Surrey Water Order 1894 (hereinafter referred to as "the Order of 1894") the East Surrey Water Act 1896 (hereinafter referred to as "the Act of 1896") and the East Surrey Water Order 1900 (hereinafter referred to as "the Order of 1900");

The expression "the existing limits" means the area within which the Undertakers are by the existing Acts and Orders authorised to supply water;

The expression "the new limits" means the area within which the Undertakers are by this Order authorised to supply water.

Undertakers.

5. The East Surrey Water Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Extension of Limits.

6.—(1) From and after the commencement of this Order the limits within which the Undertakers may supply water and exercise the powers conferred upon them by the existing Acts and Orders and this Order shall extend to and include (in addition to the existing limits) the portions of the parishes of Chelsham and Woldingham both in the rural district of Godstone in the county of Surrey hereinafter described (that is to say):—

Extension of
limits of
supply.

In the following descriptions the numbers of properties in each case refer to the numbers on the 25¹/₀₀ Ordnance map for the county of Surrey sheet No. XX-8 (second edition 1897) and sheets Nos. XX-12 XX-15 and XX-16 (second edition 1896) respectively.

(A) So much of the parish of Chelsham as lies between the boundary of the parish of Farley the boundary of the parish of Warlingham and the following boundary (that is to say)

A.D. 1912.

^{BREA}
East Surrey.

Commencing at a point on the boundary of the parish of Farley at the northernmost corner of the property numbered 19 in the parish of Chelsham and drawn thence along the easterly boundary of such property to the northernmost corner of the property numbered 32 in the said parish thence along the easterly boundary of the said property numbered 32 to a point opposite the north-western corner of the property numbered 35 in the said parish thence in an imaginary straight line to the said north-western corner of the property numbered 35 and along the northerly and easterly boundaries of that property to the south-eastern corner thereof thence along the easterly boundary of the property numbered 142 in the said parish to the south-eastern corner thereof thence in a straight line to the south-eastern corner of the property numbered 162 in the said parish thence along the respective southerly boundaries of the said property numbered 162 and of the property numbered 155 in the said parish to the easternmost corner of the property numbered 163 in the said parish thence in a straight line to the north-western corner of the property numbered 194 in the said parish thence in a straight line to the centre of the road opposite the south-eastern corner of the property numbered 179 in the said parish thence along the centre line of the said road to its point of intersection with the easterly boundary of the property numbered 167 in the said parish thence along such boundary to the southernmost corner of the last-mentioned property thence along the southerly boundary of that property to the north-eastern corner of the property numbered 173 in the said parish thence along the easterly boundary of the said property numbered 173 to the angle where such boundary turns in a south-easterly direction thence in a straight line across the said property numbered 173 to a point on the aforesaid boundary thereof adjoining the easternmost corner of the building situate in the northern corner of the property numbered 176 in that parish thence along the aforesaid easterly boundary of the said property numbered 173 to the northernmost corner of the property numbered 201 in the said parish thence along the north-westerly boundary of the said property numbered 201 and the north-easterly and south-easterly boundaries of the property numbered 202 in the said parish to the southernmost corner of the last-mentioned property thence in a straight line to a point in the centre of the roadway of the road leading from Croydon to Westerham situate at a distance of 137 yards or thereabouts measured along the centre line of the said roadway in an easterly direction from the footpath

numbered 211 in the said parish thence along the centre line of the said roadway to the said footpath thence along the said footpath to a point on the most easterly boundary of the property numbered 212 in the said parish at a distance of 13 yards or thereabouts from the south-easternmost corner of that property and thence in a straight line to the south-eastern corner of the property numbered 234 in the parish of Warlingham and there terminating on the boundary of that parish:

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- (B) So much of the respective parishes of Chelsham and Woldingham as lies between the boundary of the parish of Warlingham the boundary of the parish of Godstone and the following boundary (that is to say) Commencing at a point on the boundary of the parish of Warlingham where the footpath leading to Woldingham station across the property numbered 364 in the parish of Chelsham intersects the said boundary thence along the eastern boundary of the said footpath to and thence along the north-easterly and easterly side of the footpath leading across the said property numbered 364 and the property numbered 360 in the said parish of Chelsham to the northernmost corner of the property numbered 373 in the parish of Chelsham thence along the north-easterly boundary of the said property numbered 373 to the easternmost corner thereof thence in a straight line to a point on the northerly boundary of the property numbered 376 in the parish of Chelsham at a distance of ninety yards or thereabouts measured in a westerly direction from the northernmost corner of that property thence along the northerly and easterly boundaries of that property to the south-eastern corner thereof thence in a straight line to the north-eastern corner of the property numbered 2 in the parish of Woldingham thence along the easterly boundary of the said property numbered 2 to the centre of the road known as The Long Hill road and thence along the centre line of such last-mentioned road to the boundary of the parish of Godstone and there terminating on such boundary.

The area comprised within the new limits is more particularly delineated upon a map signed by an assistant secretary of the Board of Trade and deposited in the Parliament Office House of Lords and if there should be any difference between the description contained in this section and the area delineated upon such map the latter shall prevail.

(2) Subject to the provisions of this Order the Undertakers within the new limits shall have and may exercise all and the like powers

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privileges and authorities for and in relation to the supply of water and shall be subject to all and the like duties and obligations in respect thereof as they now have and are subject to within the existing limits and the Undertakers may continue maintain and use any mains pipes and works laid down or constructed by them before the commencement of this Order in the new limits as if the same had been laid down and constructed by them under the powers of this Order and the provisions of this Order and of any Act incorporated therewith shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of this Order.

Where Undertakers not furnishing sufficient supply local authority or company may supply.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any part of the new limits the rural district council of Godstone may provide a supply therein in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of the new limits to which the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water as if in either case there were no Undertakers authorised by this Order to supply water therein.

If any difference shall arise between the Undertakers and any such district council company body or person as to the sufficiency of the supply of water in any part of the new limits such difference shall be settled on the application of either party by the Board of Trade.

Differences with road authority or company or person.

8. If any difference arises between the Undertakers and any road authority railway canal or other company or person whose lands or works the Undertakers have power to cross under the authority of this Order for the purposes of meeting the demands for water within the new limits as to the mode of laying down repairing altering or enlarging their conduits mains pipes or works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Rates and Charges.

Repeal of sections 26 27 and 29 of Act of 1862 sections 27 31 and 32 of Act of 1885 and sections 5 and 6 of Act of 1896.

9.—(1) From and after the twenty-sixth day of March 1913 sections 26 27 and 29 of the Act of 1862 sections 27 31 and 32 of the Act of 1885 and sections 5 and 6 of the Act of 1896 shall be repealed and in lieu thereof the following provisions shall be in force and have effect.

Rates at which water is to be supplied for

(2) The Undertakers shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house in any street in which any pipe of the Undertakers shall be laid or of any person who

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*East Surrey.*domestic
purposes.

under the provisions of the existing Acts and Orders and this Order or any Act incorporated therewith respectively shall be entitled to demand a supply of water for domestic purposes furnish to such owner or occupier or other person a sufficient supply of water for their domestic uses at rates not exceeding the rates per annum hereinafter specified (that is to say):—

Where the annual value of such premises so supplied shall not exceed seven pounds ten shillings:

Where the same shall exceed seven pounds and not exceed eight pounds eleven shillings:

Where the same shall exceed eight pounds and not exceed nine pounds twelve shillings:

Where the same shall exceed nine pounds and not exceed ten pounds thirteen shillings:

Where the same shall exceed ten pounds and not exceed eleven pounds fourteen shillings:

Where the same shall exceed eleven pounds and not exceed twelve pounds fifteen shillings:

Where the same shall exceed twelve pounds and not exceed thirteen pounds sixteen shillings:

Where the same shall exceed thirteen pounds and not exceed fourteen pounds seventeen shillings:

Where the same shall exceed fourteen pounds and not exceed fifteen pounds eighteen shillings:

Where the same shall exceed fifteen pounds and not exceed sixteen pounds nineteen shillings:

Where the same shall exceed sixteen pounds and not exceed seventeen pounds twenty shillings:

Where the same shall exceed seventeen pounds and not exceed eighteen pounds twenty-one shillings:

Where the same shall exceed eighteen pounds and not exceed nineteen pounds twenty-two shillings:

Where the same shall exceed nineteen pounds and not exceed twenty pounds twenty-three shillings:

Where the same shall exceed twenty pounds and not exceed twenty-five pounds twenty-eight shillings:

Where the same shall exceed twenty-five pounds and not exceed thirty pounds thirty-three shillings:

Where the same shall exceed thirty pounds and not exceed thirty-five pounds thirty-eight shillings:

Where the same shall exceed thirty-five pounds and not exceed forty pounds forty-three shillings:

[Ch. clxiii.] *Water Orders Confirmation* [2 & 3 GEO. 5.]
Act, 1912.

A. D. 1912. Where the same shall exceed forty pounds and not exceed forty-five
East Surrey. pounds forty-eight shillings:

Where the same shall exceed forty-five pounds and not exceed
 fifty pounds fifty-three shillings:

Where the same shall exceed fifty pounds and not exceed sixty
 pounds sixty shillings:

Where the same shall exceed sixty pounds and not exceed seventy
 pounds sixty-seven shillings:

Where the same shall exceed seventy pounds and not exceed eighty
 pounds seventy-four shillings:

Where the same shall exceed eighty pounds and not exceed ninety
 pounds eighty shillings:

Where the same shall exceed ninety pounds at a rate not exceeding
 four pounds ten shillings per centum per annum of such annual
 value.

Additional
 charges.

(3) In addition to the foregoing charges the Undertakers may charge
 the sums per annum hereinafter specified (that is to say):—

(For water-
 closets.)

(A) For every watercloset (beyond the first in respect of which no
 charge shall be made)—

Where the annual value of the premises upon which
 the same is situate does not exceed fifty pounds a sum
 not exceeding five shillings;

Where the annual value of the premises upon which the
 same is situate exceeds fifty pounds a sum not exceeding
 seven shillings and sixpence:

(For baths.)

(B) For every fixed bath capable of containing not more than fifty
 gallons—

Where the annual value of the premises upon which the
 same is situate does not exceed fifty pounds a sum not
 exceeding ten shillings;

Where the annual value of the premises upon which the
 same is situate exceeds fifty pounds a sum not exceeding
 fifteen shillings;

And for every fixed bath capable of containing more
 than fifty gallons such sum as the Undertakers may
 think fit:

Provided always that the Undertakers shall not be compelled to
 supply any watercloset or bath or the apparatus or pipes connected
 therewith unless the same shall be so constructed and used as to
 prevent the waste and undue consumption of water and the return
 of foul air and other noisome or impure matter into the mains or

other pipes belonging to or connected with the mains or pipes of the Undertakers. A.D. 1912.

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The Undertakers may demand and take in respect of a supply of water to any premises as aforesaid and to such waterclosets and baths where the point at which the water shall be discharged or flow into such house or premises is situate at an altitude higher than four hundred feet above Ordnance datum rates and charges higher by not more than one fourth than the rates and charges hereinbefore specified and where the same is situate at an altitude higher than six hundred and fifty feet above Ordnance datum rates and charges higher by not more than one half than the rates and charges hereinbefore specified. (For high service.)

The additional charges by this subsection authorised shall be paid quarterly in advance and shall be recoverable in all respects with and as the water rate.

(4) The Undertakers may supply water for other than domestic purposes on such terms and conditions as they may think fit and may by agreement supply water by measure either for domestic or other purposes and money payable for the supply of water by measure shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. Supply by measure.

(5) The Undertakers may for water supplied by meter for public purposes (that is to say a supply for the purposes specified in section 37 of the Waterworks Clauses Act 1847) make a charge not exceeding tenpence per thousand gallons and for water supplied by meter for purposes other than public purposes a charge not exceeding two shillings per thousand gallons. Provided always that where water supplied by meter for purposes other than public purposes is delivered at a point higher than four hundred feet above Ordnance datum the Undertakers may make a charge not exceeding two shillings and sixpence per thousand gallons. Price of supply by meter and for building purposes.

The charge for water supplied for use in the erection of any building or part of a building shall not exceed the following rates per one hundred pounds of the contract price for the building and if there is no such contract price of the estimated total cost of the building (that is to say):—

Where the point at which the water is supplied is not higher than four hundred feet above Ordnance datum a rate not exceeding seven shillings and sixpence per one hundred pounds; and

Where such point is higher than four hundred feet above Ordnance datum a rate not exceeding ten shillings per one hundred pounds.

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(6) Until the 26th day of March 1913 the Undertakers may demand and take for water supplied by them for any purpose within the new limits rates and charges not exceeding those which for a like supply under like circumstances they are by the Act of 1885 authorised to demand and take within the parish of Farley.

For protec-
tion of
Reigate Cor-
poration.

10. The Undertakers shall on demand of the corporation of the borough of Reigate unless prevented by frost unusual drought or other unavoidable accident or during necessary repairs supply the corporation by meter at a charge not exceeding tenpence per thousand gallons with water for flushing sewers and drains for watering streets and roads for public fountains and drinking troughs for public baths and wash-houses for public urinals for the supply of the school buildings electric generating station isolation hospital and sewage disposal works of the corporation and for any other public purpose of the borough.

Lands.

Purchase of
lands by
agreement.

11.—(1) In addition to any other lands which the Undertakers are under the existing Acts and Orders authorised to take or purchase the Undertakers may subject to the limitation mentioned in subsection (2) of this section from time to time purchase take on lease or otherwise acquire by agreement and use and hold for the general purposes of their undertaking any lands and any easements rights or privileges (not being an easement right or privilege of water in which persons other than the parties to the agreement have an interest) in over or under any lands which they may from time to time require and the Undertakers may on any lands acquired by them under this section make maintain alter or discontinue such cisterns tanks aqueducts drains cuts sluices pipes culverts engines buildings offices and dwellings and other works (other than works for taking or intercepting water) as may be required for the purposes of or in connection with their undertaking:

Provided that the Undertakers shall not on any lands so acquired so long as the same are held by them create or permit a nuisance or erect or authorise the erection thereon of any houses or similar buildings except offices and dwellings for persons in their employ and such buildings as may be required for the purposes of or in connection with their undertaking.

(2) The total quantity of land held by the Undertakers at any one time under this section together with the total quantity of lands at the same time held by them under the provisions of section 20 of the Act of 1862 section 15 of the Act of 1881 section 6 of the Act of 1885 section 5 of the Order of 1894 and section 25 of the Act of 1896 shall not exceed 40 acres in the whole.

Persons
under dis-
ability may

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of the

said Acts grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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East Surrey.
 grant ease-
 ments &c.

13.—(1) The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them under the powers of this Order unless the works are authorised by and the lands upon which the same are to be constructed are specified in some future Act of Parliament or Provisional Order confirmed by Parliament.

Limiting
 powers to
 abstract
 water.

(2) Notwithstanding anything in the existing Acts and Orders the Undertakers shall not sink any new wells or bores on or drive any new adits under any lands belonging to them whether acquired under the existing Acts and Orders or this Order unless such wells bores or adits are authorised by some future Act of Parliament or Provisional Order confirmed by Parliament.

(3) The Undertakers shall not in any year abstract by means of their pumping stations and works at Purley and Kenley a total quantity of water which will exceed in such year an average of four million gallons per day of twenty-four hours.

(4) The Undertakers shall keep daily records of the quantity of water pumped at each of their said pumping stations and such records shall be open to the inspection at all reasonable times of any duly authorised officer of the corporation of Croydon and of a person duly appointed by the River Wandle Protection Association and any such officer or person shall be entitled to take copies thereof free of charge.

14. The Undertakers may sell or demise and lease for any terms not exceeding twenty-one years or exchange or otherwise dispose of to such persons and in such manner as the Undertakers think fit any lands and property for the time being belonging to the Undertakers which they may not require for the purposes of the undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable) and on any sale lease exchange or disposal by the Undertakers of any such lands and property whether the same be subject to the said provisions of the Lands Clauses Consolidation Act 1845 or not they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the sale lease exchange or disposal subject to such reservations accordingly and may also make any such sale lease exchange or disposal subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise

Undertakers
 may sell lease
 &c. spare
 lands.

A.D. 1912. of noxious trades or discharge or deposit of manure sewage or other
East Surrey. impure matter as they think fit.

New Capital.

New capital. 15. In addition to the capital already authorised to be raised by the Undertakers (in this Order referred to as "the existing capital") the Undertakers may—

(1) Raise any further sums not exceeding in the whole one hundred and twenty thousand pounds (in this Order referred to as "the new capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Undertakers shall not issue any share under the authority of this Order of a less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock together with any premium obtained on the sale thereof as hereinafter provided has been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to issue as preference shares or stock or to attach a preferential dividend to a greater amount than sixty thousand pounds of the new capital or to create and issue under the powers of this Order any greater nominal amount of share capital than will be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds:

(2) Borrow on mortgage of the undertaking in respect of the new capital any sum or sums not exceeding in the whole one-third part of the amount of the new capital which at the time of borrowing has been raised under the powers of this Order but no sum shall be borrowed in respect of any capital so raised until the Undertakers have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

As to conversion of borrowed money into capital.

16. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital any money borrowed under the provisions of this Order.

17. Except as by this Order otherwise provided the new capital and new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the new capital were part of the capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital and the new capital shall form part of the capital of the Undertakers.

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East Surrey.
Incidents of
new capital.

18.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

New capital
to be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the town clerk of every borough and the clerk to the district council of every urban or rural district within the existing limits or the new limits and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the existing limits and the new limits:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the

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East Surrey.

ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the provisions of subsection (2) or of subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of money.

19. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
new capital.

20. The Undertakers shall not in any one year make out of their profits any larger dividend on the new capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which may have fallen short of the said sum of seven pounds per centum per annum.

Ranking of
different
classes of
ordinary
capital for
dividend if
profits in-
sufficient to

21. If in any one year the net revenues of the Undertakers applicable to dividend on ordinary capital shall be insufficient to pay the full amount of the prescribed rate of dividend on each class of ordinary shares or stock in the capital of the Undertakers such revenues shall be applied in the first place in payment of dividend on

all ordinary capital of the Undertakers up to the rate of seven pounds per centum in respect of every sum actually paid up of such capital and the balance in payment of dividend upon all ordinary capital of the Undertakers actually paid up and entitled to a higher rate of dividend than seven pounds per centum.

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East Surrey.
 pay in full
 prescribed
 dividend on
 all.

22. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock created under this Order to which a preferential dividend shall be assigned.

Restrictions
 as to votes in
 respect of
 preferential
 capital.

23. The Undertakers may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 19 of the Order of 1900.

Power to
 create debenture
 stock.

24. All mortgages granted by the Undertakers before the commencement of this Order under the authority of any Act of Parliament or Provisional Order confirmed by Parliament and subsisting at the date of such commencement shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over all mortgages granted under the authority of this Order but nothing in this section shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Existing
 mortgages to
 have priority.

25. All money raised or issued by the Undertakers on mortgage or debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers in pursuance of any Act or Order relating to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Priority of
 mortgages
 over other
 debts.

26. Section 21 (For appointment of receiver) of the Order of 1900 is hereby repealed as from the commencement of this Order but without prejudice to any appointment heretofore made or any proceedings then pending and from and after such commencement the mortgagees of the Undertakers may enforce payment of arrears of interest or of principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing

Appointment
 of receiver.

A.D. 1912. to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

East Surrey.

Receipt in
case of per-
sons not sui
juris.

27. If any money is payable to a shareholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers.

Miscellaneous.

For protec-
tion of Surrey
County
Council.

28. It shall not be lawful for the Undertakers to supply water derived from any source in the county of Surrey in bulk or otherwise beyond or for use beyond the limits of the county of Surrey except with the consent in writing of the Surrey County Council. Provided that it shall be lawful for the Undertakers to continue to supply water in bulk to the East Grinstead Rural District Council and in bulk or otherwise to any houses or premises situate beyond the said county to which at the commencement of this Order the Undertakers are affording a supply of water.

Application
of existing
funds.

29. The Undertakers may from time to time apply to the purposes of this Order to which capital is properly applicable any moneys which they have already raised or are authorised to raise under the existing Acts and Orders.

Costs of
Order.

30. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

HENLEY-ON-THAMES WATER.

*Henley-on-
Thames.*

Order extending the limits of supply of the Henley-on-Thames Water Company Limited authorising the Company to construct new waterworks and to raise additional capital and for other purposes.

Preliminary.

Short and
collective
titles.

1. This Order may be cited as the Henley-on-Thames Water Order 1912 and the Henley-on-Thames Water Order 1881 and the Henley-on-Thames Water Order 1901 (in this Order referred to respectively as "the Order of 1881" and "the Order of 1901" and collectively as "the Orders of 1881 and 1901") and this Order may be cited together as the Henley-on-Thames Water Orders 1881 to 1912.

[2 & 3 GEO. 5.] *Water Orders Confirmation* [Ch. clxiii.]
Act, 1912.

A.D. 1912.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Henley-on-Thames.
Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the Waterworks Clauses Act 1847 "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner") are (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of the Orders of 1881 and 1901 and of this Order) incorporated with this Order.

Incorporation of gen-
eral Acts.

4. In this Order—

Interpreta-
tion.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Gas and Water Works Facilities Act 1870 have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expression "the existing limits" means the areas within which the Undertakers are by the Orders of 1881 and 1901 authorised to supply water;

The expression "the new limits" means the further area within which the Undertakers are by this Order authorised to supply water;

The expression "the limits of supply" means and includes the existing limits and the new limits;

The expressions "deposited plans" and "deposited sections" mean respectively the plans and sections deposited for the purposes of this Order.

Undertakers.

5. The Henley-on-Thames Water Company Limited shall be the Undertakers. Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Extension of Limits.

6.—(1) The Undertakers may supply water and shall have and may exercise subject to the provisions of this Order within the respective portions of the parishes of Rotherfield-Greys Rotherfield-Peppard

Extension of
limits of
supply.

A.D. 1912.
—
Henley-on-
Thames.

Harpsden and Shiplake all in the rural district of Henley in the county of Oxford hereinafter mentioned (that is to say) :—

The portions of the said parishes which lie between the southwestern boundary of the existing limits and the following boundary viz. Commencing at a point on the boundary between the respective parishes of Rotherfield-Greys and Badgemore 290 yards or thereabouts south of Mankorn's Lodge and drawn thence in a straight line to the western side of the pond at Hermes Farm thence in a straight line to a point in White Hill 300 yards or thereabouts south-south-eastwards of Hunt's Farm thence in a straight line to the county boundary in the River Thames opposite the centre of Hallsmead Eyot and thence along the said county boundary to the boundary of the existing limits at Shiplake Lock

all and the like powers privileges and authorities for and in relation to the supply of water including the levying of rents rates and charges and shall be subject to all and the like duties and obligations in respect thereof as they now have and are subject to within the existing limits and the Undertakers may continue maintain and use any mains pipes and works laid down or constructed by them before the commencement of this Order in the new limits as if the same had been laid down and constructed by them under the powers of this Order and the provisions of this Order and of any Act incorporated therewith shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of this Order.

(2) The area comprised within the new limits is more particularly delineated upon a map signed by an assistant secretary of the Board of Trade and deposited in the Parliament Office House of Lords and if there should be any difference between the description contained in this section and the area delineated upon such map the latter shall prevail.

Where
Undertakers
not furnish-
ing sufficient
supply local
authority or
company may
supply.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order in any part of the district of any local authority included within the new limits the local authority of such district may provide a supply in the whole or any part of their district within the new limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district to which the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water as if in either case there were no Undertakers authorised by this Order to supply water therein.

[2 & 3 GEO. 5.] *Water Orders Confirmation* [Ch. clxiii.]
Act, 1912.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

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Henley-on-Thames.

Lands.

8. In addition to any other lands which the Undertakers are under the Orders of 1881 and 1901 authorised to take or purchase the Undertakers may by agreement purchase take on lease acquire and use such of the lands shown on the deposited plans or such easements in over or under the same as they may require for the purposes of this Order.

Further powers to acquire lands by agreement.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of the said Acts grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c. to Undertakers.

Works.

10. The Undertakers may on the lands shown on the deposited plans so long as they are possessed of the said lands or so long as they may be entitled to do so under any agreement make and maintain in the lines and according to the levels shown on the deposited plans and deposited sections the following works in the county of Oxford (that is to say):—

Power to construct works.

- (1) A service reservoir at Mays Green in the parish of Harpsden near the north-western corner of High Wood;
- (2) A rising main (consisting of a line or lines of pipes) commencing at a point on the boundary of the borough of Henley in the road known as Mill Lane by a junction with the existing six-inch main of the Undertakers and terminating in the service reservoir by this Order authorised;

together with all necessary or convenient pipes mains culverts drains channels sluices valves filters tanks banks walls embankments pumps engines machinery and other works and conveniences connected therewith and the construction of so much of the said rising main as has been constructed by the Undertakers prior to the commencement of this Order is hereby sanctioned and confirmed and shall be deemed to have been lawfully constructed and may be maintained and used by the Undertakers accordingly.

[[Ch. clxiii.] *Water Orders Confirmation* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Henley-on-Thames.
 Limiting powers to abstract water.

Limits of deviation.

Limit of time for construction of works.

For protection of Oxfordshire County Council.

11. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament.

12. In constructing the works authorised by this Order the Undertakers may deviate laterally to any extent within the limits of deviation shown on the deposited plans but in no case beyond the width of any road shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and ten feet downwards. Provided that no part of the said rising main shall be raised above the surface of the ground.

13. The works authorised by this Order shall be commenced constructed and completed within the time and subject to the conditions prescribed by section 11 of the Gas and Water Works Facilities Act 1870. Provided that subject to the restrictions and provisions of this Order the Undertakers may from time to time alter enlarge extend and renew such works and lay down additional lines of pipes along the route of the rising main by this Order authorised in such manner as may be requisite or advisable for supplying water within the limits of supply.

14. In executing the works and exercising the powers by this Order respectively authorised and conferred so far as they affect main roads within the new limits repairable by the county council of Oxfordshire and county and main road bridges and approaches thereto so repairable within the new limits the following provisions for the protection of the said council shall have effect unless otherwise agreed on in writing between the council and the Undertakers (that is to say):—

(1) Notwithstanding anything contained in this Order all pipes or works to be laid or constructed in or along any such road or any such approach to or in the roadway of any such bridge shall be laid and constructed in such position at the side thereof or in the roadside waste at such depth as the council shall by writing under the hand of their surveyor (in this section referred to as "the surveyor") reasonably direct and if the surveyor shall in his discretion so require shall not be constructed or laid in upon or across the roadway of any bridge or any arch connected therewith but shall be carried by and on the outside of such bridge in such position and manner as the surveyor shall in writing reasonably direct:

(2) All works of or connected with the laying down of pipes shall be so executed as not entirely to stop or unreasonably to interfere with the traffic of any such road or bridge or any approach thereto:

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*Henley-on-
Thames.*

- (3) The Undertakers shall pay to the council the reasonable cost incurred by the council in relation to the examination of any plans and the superintendence of any works of the Undertakers authorised by this Order by the council or their officers which the council are by this Order authorised or required to examine or superintend such cost not to exceed five guineas for such examination and superintendence in respect of any works which may be comprised in any one notice given to the council by the Undertakers who shall not be liable to make any payment as aforesaid in relation to any works upon which the capital outlay of the Undertakers is under ten pounds:
- (4) Nothing in this Order shall in any way limit or affect the powers of the council to divert widen or improve any road or to remove alter widen rebuild or repair any bridge or the approaches thereto in alongside or near to which any pipes of the Undertakers are laid or carried:
- (5) If at any time the council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any of the works or apparatus of the Undertakers they shall before the commencement of such works give one month's notice in writing to the Undertakers of their intention to carry out such works and if in order to avoid interruption to the supply of water by the Undertakers it is in the opinion of the surveyor necessary to remove temporarily the mains and other appliances of the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their pipes across such bridge or at the side thereof in such manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the council:
- (6) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge as they had before the said works were carried out:
- (7) The council shall not be liable for any injury which may be occasioned to the pipes of the Undertakers laid in any road or along or across any bridge by the reasonable acts of the council in repairing such road or bridge Provided that the use by the council of any steam roller not exceeding fifteen tons in weight shall not be deemed an unreasonable act:
- (8) The Undertakers shall to the reasonable satisfaction of the surveyor keep the portion of all main roads which shall be

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*Henley-on-
Thames.*

broken up for the purpose of constructing laying or repairing any pipes or works in good repair for twelve months after replacing and making good the same:

(9) The notices required by section 30 of the Waterworks Clauses Act 1847 to be given by the Undertakers shall be given not less than seven days instead of three days before beginning the intended works:

(10) If any difference arise between the Undertakers and the council touching this section or anything to be done thereunder such difference shall be settled by an arbitrator to be agreed upon or failing such agreement to be appointed by the Board of Trade on the application of either of the parties in difference.

For protec-
tion of Con-
servators
of River
Thames.

15. Nothing in this Order shall authorise the Undertakers to interfere in any manner with the bed soil banks towpaths or shores of the River Thames or the navigation thereof or affect in any manner the rights powers or privileges of the Conservators of the River Thames in respect thereof.

Differences
with road
authority or
railway or
other com-
pany.

16. If any difference arises between the Undertakers and any road authority railway canal or other company or person whose lands or works the Undertakers have power to cross under the authority of this Order for the purposes of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits mains pipes or works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

New Capital.

New capital.

17. Notwithstanding the limitation prescribed by section 13 of the Order of 1901 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking authorised by the Orders of 1881 and 1901 the share capital of the Undertakers for the purposes of the undertaking authorised by the said Orders and this Order may consist of the share capital of thirty-two thousand pounds mentioned in the said section 13 of the Order of 1901 and of further share capital consisting of shares or stock (in this Order referred to as "the new capital") not exceeding in the whole seven thousand five hundred pounds including any premiums which may be obtained on the sale thereof Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole thirty-nine thousand five hundred pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

18.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

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(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

Henley-on-
*Thames.*New capital
to be sold by
auction or
tender.

(A) Notice of the intended sale shall be given in writing to the town clerk of the borough of Henley and to the clerks of the respective rural district councils of Henley in the county of Oxford and Wokingham in the county of Berks and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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*Henley-on-
Thames.*

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of money.

19. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under this Order by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
new capital.

20. The Undertakers shall not in any one year pay out of their profits any larger dividend on the new capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Dividends on
different
classes of
ordinary
shares or
stock to be
paid pro-
portionately.

21. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Limit of
borrowing
powers.

22. The Undertakers may borrow on mortgage of their undertaking (in addition to the sums which they are already empowered to borrow under the Orders of 1881 and 1901) the following further sums (that is to say):—

- (i) A sum not exceeding two thousand pounds in respect of the capital authorised by the Orders of 1881 and 1901; and
- (ii) Any sum or sums not exceeding in the whole one third of the amount of the new capital at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order;

[2 & 3 GEO. 5.] *Water Orders Confirmation* [Ch. clxiii.]
Act, 1912.

And no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid. A.D. 1912.
Henley-on-Thames.

23. The Undertakers may from time to time apply to the purposes of this Order to which capital is properly applicable any moneys which they have already raised or are authorised to raise under the Orders of 1881 and 1901. Application
of existing
funds.

Miscellaneous.

24. From and after the completion of the service reservoir by this Order authorised section 16 (Limits of pressure) of the Order of 1881 shall be read and have effect as if the words "the service reservoir from which the supply is given" had been inserted therein in lieu of the words "the service reservoir or works authorised by this Order." As to
pressure.

25. The owner or occupier of any house within the limits of supply situate at a higher level than two hundred feet above Ordnance datum receiving or requiring a supply of water from the Undertakers shall if the Undertakers so determine provide use and maintain for the purposes thereof such cistern or cisterns of such size materials and workmanship as the Undertakers may (subject to and in accordance with any regulations made and approved by the Local Government Board under section 20 of the Order of 1881 and for the time being in force) prescribe and any person who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds. Provided always that in case of dispute between the Undertakers and any such owner or occupier as to any requirements of the Undertakers under this section such dispute shall be decided by a court of summary jurisdiction. Power to
require pro-
vision of
cisterns.

26. For the purposes of section 17 (Rates for supply for domestic purposes) of the Order of 1881 as amended by section 22 of the Order of 1901 the rateable value of any premises supplied by the Undertakers with water for domestic purposes in respect of which there is no valuation or assessment list in force shall be ascertained by the last rate made for the relief of the poor. Ascertain-
ment of rate-
able value in
certain cases.

27. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Undertakers
not bound to
supply several
houses by
one pipe.

28. From and after the commencement of this Order section 38 (Before sale of all or any part of undertaking to any corporation company or person offer to be made to Henley Local Board) of the Order of 1881 shall be read and have effect as if the words "authorised by Amendment
of section 38
of Order of
1881.

A.D. 1912. this Order" were omitted from that section and as if the expressions
Henley-on-Thames. "water undertaking" and "undertaking" in that section included the undertaking authorised by the Order of 1881 and extended by the Order of 1901 and this Order and as if the words "the corporation of the borough of Henley-on-Thames" were inserted therein in lieu of the words "the local board of the district of Henley-on-Thames" and the words "the said corporation" in lieu of the words "the said local board."

Costs of
Order.

29. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

WIMBORNE MINSTER WATER.

*Wimborne
Minster.*

*Order empowering the Wimborne Minster Waterworks
Company Limited to raise further capital to extend the area
of supply and for other purposes.*

Preliminary.

Short and
collective
titles.

1. This Order may be cited as the Wimborne Minster Water Order 1912 and the Wimborne Minster Water Order 1888 (in this Order referred to as "the Order of 1888") and this Order may be cited together as the Wimborne Minster Water Orders 1888 and 1912.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation of Acts.

3. The provisions of the Waterworks Clauses Acts 1847 and 1863 except the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847 are incorporated with and form part of this Order except so far as the same are expressly varied by or are inconsistent with the provisions of the Order of 1888 or this Order.

Interpreta-
tion.

4. In this Order the several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction And for the purposes of this Order "the undertaking" means the undertaking of the Wimborne Minster Waterworks Company Limited.

5. The Wimborne Minster Waterworks Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

A.D. 1912.

*Wimborne
Minster.*

Undertakers.

6. The limits within which the Order of 1888 and this Order shall be in force and have effect (in this Order referred to as "the limits of supply") shall be the limits as defined by the Order of 1888 and also the parishes or parts of parishes hereinafter described namely The remainder of the parish of Colehill not included in the limits of supply by the Order of 1888 (except such part thereof as lies to the south of the railway of the London and South Western Railway Company from Wimborne Station to Westmoors) and also such part of the parish of Hampreston as is bounded on the south by the said railway on the west by the parish of Colehill on the north by the parish of Holt and on the east by a line drawn from a point at the northern end of the bridge known as White Bridge thence following the road known as Uddens Drive to the railway crossing at Uddens and also such part of the parish of Pamphill as is bounded by a line—

Extension of
limits of
supply.

Commencing at its north-east corner at the centre of the stream near Hogford thence drawn along the southern boundary of field No. 179 (25-inch scale Ordnance survey dated 1901) to field No. 178 on the same plan thence following the course of the said stream in a southerly direction to the junction of the road No. 174 leading to Hound Hill thence along the said road in a south-westerly direction to its junction with Chilbridge Lane on the east side of Daffodil Copse thence south-east along the road to Hillbutts thence along the road in a south-westerly direction crossing the main road at the cottages near Manor Yard thence following Abbott Street in a westerly direction to its junction with a lane known as Sandy Lane thence in a southerly direction along Sandy Lane crossing the road leading to Sturminster Marshall on the west side of Cowgrove Farm by a drive leading to and as far as the River Stour at the ford on the south-west side of Chaw Meadow thence following the River Stour in an easterly direction to the boundary of the limits of supply as defined by the Order of 1888 near Cuthbury Allotments.

7. The Undertakers shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them unless the works and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament.

Limiting
powers of
Undertakers
to abstract
water.

8. If at any time after the expiration of three years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance

Where
Undertakers
not furnish-
ing sufficient

A.D. 1912.

*Wimborne
Minster.*supply local
authority or
company may
supply.

with the provisions of this Order in any part of the district of any local authority within the area to which the powers of the Undertakers are extended by this Order the local authority of such part of the said district may provide a supply in the whole or any part of their district within the said area in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Undertakers as if in either case there were no company authorised by this Order to supply water therein. If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

Differences
with road
authority or
railway or
other com-
pany.

9. If any difference arises between the Undertakers and any road authority railway canal or other company whose lands or works the Undertakers have power to cross under the authority of this Order for the purpose of meeting the demands for water within the limits of supply as to the mode of laying down repairing altering or enlarging their conduits mains pipes or works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

*Additional Capital.*Additional
capital.

10. The limitation prescribed by section 7 of the Order of 1888 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the additional capital") not exceeding six thousand pounds including any premiums which may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole fourteen thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital to be
sold by
auction or
tender.

11.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of every local authority within the limits of supply

and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :

A.D. 1912.

*Wimborne
Minster*

- (b) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered in accordance with the foregoing provisions of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

- A.D. 1912. 12. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.
- Wimborne
Minster.*
Application
of money.
- Limits of
dividend on
additional
capital.
13. The Undertakers shall not in any one year make out of their profits any larger dividend on the additional capital than at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on the ordinary share capital which shall have fallen short of the said sum of seven pounds per centum per annum.
- Dividends on
different
classes of
ordinary
shares or
stock to be
paid propor-
tionately.
14. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenue of the Undertakers applicable to dividend is insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.
- Limit of
borrowing
powers.
15. Notwithstanding anything contained in section 8 of the Order of 1888 the Undertakers may borrow on mortgage of their undertaking in addition to the sum they are already empowered to borrow any sum of money not exceeding one third of the amount of the additional capital at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.
- Supply of
water by
hose-pipe to
stables &c.
16. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables on premises where horses carriages or motor cars are kept the Undertakers may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.
- Supply to
houses partly
used for
trade.
- 17.—(1) The Undertakers shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.
- (2) Where a supply of water to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming

purposes shall be taken by meter but nothing in this section shall authorise the Undertakers to refuse a supply of water for purely domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

A.D. 1912.

*Wimborne
Minster.*

18. The price to be charged for a supply of water by measure shall not exceed two shillings per thousand gallons.

Price of
supply by
measure.

19. The Undertakers may but only with the consent in writing of the owner of the soil of such street on the application of the owner or occupier of any premises within the district abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes where so laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
pipes in
streets not
dedicated to
public use.

20. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that if the Undertakers determine to charge the owners instead of the occupiers as aforesaid no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable
by owners of
small houses.

21. Proceedings for the recovery of any demand made under the authority of the Order of 1888 and this Order or either of them or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

22. If a person requiring a supply of water from the Undertakers has previously quitted premises at which water was supplied to him by the Undertakers without paying to them all water rates and other moneys due from him to the Undertakers they may refuse to furnish to him a supply of water until he pays the same.

Power to re-
fuse supply
to persons in
debt for other
premises.

23. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Undertakers
not bound to
supply several
houses by one
pipe.

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Wimborne
*Minster.*Notice of dis-
continuance.

24. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the registered office of the Undertakers.

Power to
supply
fittings.

25.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Detection of
waste.

26. Subject to the provisions of the Waterworks Clauses Acts 1847 and 1863 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Undertakers and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lands footpaths thoroughfares tramways and gas or water pipes.

Power to hold
lands for pro-
tection of
works.

27. The Undertakers may hold any lands acquired by them which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the Undertakers shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than such buildings and works as may be incident to or connected with their waterworks.

Power to
drain such
lands.

28. The Undertakers may in or upon any lands which they may hold for the purposes described in the last preceding section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper

[2 & 3 GEO. 5.] *Water Orders Confirmation* [Ch. clxiii.]
Act, 1912.

for preventing the water which the Undertakers are empowered to take from being polluted fouled contaminated or discoloured and the Undertakers may for the purpose aforesaid carry any such drain sewer or watercourse under across or along any street or road within or adjoining such lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

A.D. 1912.

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Wimborne
Minster.

29. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

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